

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY LI (LIGHT INDUSTRIAL) TO P (PUBLIC DISTRICT) FOR A TRACT OF LAND GENERALLY LOCATED WEST OF WESTLAND ROAD AT CROW CREEK."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on March 2, 2020, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a tract of land situated in a portion of the SW ½ of Section 36, T14N, R67W, 6th PM, Laramie County, Wyoming, more particularly described as follows: Beginning at the Southeast corner of Lot 2, Block 1 Griffin addition, 2nd Filing from which the South Quarter Corner of Section 36 bears S44°19'00"W, a distance of 812.49 feet; thence along the West right of way of Westland Road on a curve to the right, an arc distance of 203.55 feet (having a chord bearing of S54°01'38"W a distance of 203.41 feet, radius of 1577.02 feet, and Delta of 7°23'43"); thence N68°01'36"W, a distance of 156.72 feet; thence N89°54'49"W, a distance of 271.20 feet to the East right of way of County Road 51; thence N0°10'43"E, along said right of way, a distance of 139.84 feet to the South line of said Lot 2; thence N89°52'54"E, along said South line, a distance of 347.79 feet; thence S0°12'48"E, along said South line, a distance of 79.74 feet; thence S89°54'11"E, along said South line, a distance of 232.64 feet to the Point of Beginning is hereby changed to P Public District.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Crow Creek Zone District Map Amendment Process

CASE NUMBER(s): UDC-20-00038 **SUBDIVISION CODE:** <unplatted>

PREPARED BY: Mark Christensen

MEETING DATES:	Planning Commission:	March 2, 2020	
	City Council:	March 9, 2020	1 st Reading
	Public Service Committee:	March 17, 2020	
	City Council:	March 23, 2020	2 nd Reading
	Public Service Committee:	April 7, 2020	
	City Council:	April 13, 2020	3 rd Reading

RECOMMENDATION: On March 2, 2020, the Planning Commission approval of the zone change request from County LI Light Industrial to City P Public District.

STAFF REPORT

Crow Creek Zone District Map Amendment Process

CASE NUMBER(s): UDC-20-00038 **SUBDIVISION CODE:** <unplatted>
PREPARED BY: Mark Christensen
PUBLIC HEARING: March 2, 2020 (Planning Commission)
OWNER(s): City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001
AGENT: Mark Christensen (307) 637-6352
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001
PROJECT: Crow Creek Zone Change

WORK DESCRIPTIONS: A owner-initiated zone change request from County LI Light Industrial to P Public District for City-owned property adjacent to Crow Creek west of Westland Road. The P Public District designation is to accommodate future Greenway.

LOCATION:

1. Legal Description: a portion of the S½ of Section 36, T14N, R67W, 6th PM, Laramie County, Wyoming
2. Location: located between Westland Road and I-25, adjacent to Crow Creek
3. Addresses: (unaddressed)

SIZE: 1.55 acres

CURRENT ZONING: County LI Light Industrial
PROPOSED ZONING: P Public District
EXISTING LAND USE: Vacant
PROPOSED LAND USE: Open Space and Greenway

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Vacant	P	City
South	Residential, Vacant	County LI	County
East	Vacant	LI	City
West	Outdoor Sales (Automobile)	LI	City

EXECUTIVE SUMMARY:

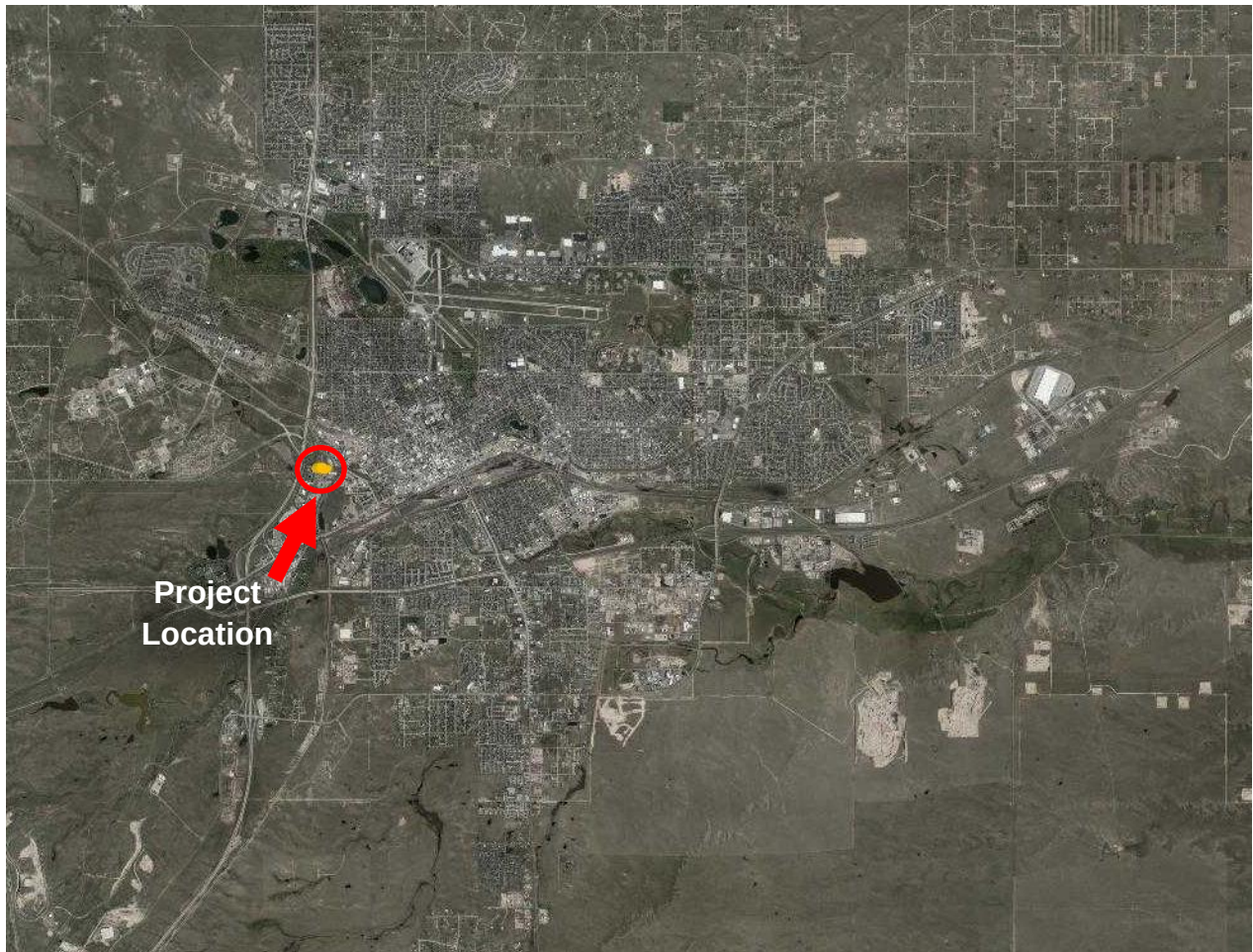
This zone change application proposes changing the zoning from County LI Light Industrial to P Public District for four City-owned tracts adjacent to Crow Creek. The area is proposed to be annexed to the City of Cheyenne and therefore requires a City zone. The subject tracts are adjacent to Crow Creek, where the Crow Creek Revival effort is anticipating completing stream restoration. Additionally, future Greenway is planned to go through or adjacent to the subject tracts.

The current County zoning designation of LI Light Industrial is not suitable for the planned Greenway through the City-owned tracts. Additionally, most of the property is within the FEMA Floodway or the FEMA 100-year Floodplain, making future light industrial development on the property unlikely. The planned stream restoration project on Crow Creek through the tracts further conflicts with light industrial development.

The City ownership, stream restoration, and future Greenway through the tracts are most compatible with a recreation and open space designation, which is achieved through the P Public District. The P zone is intended primarily for public sites, buildings and uses where activities conducted provide service to the public, including educational facilities, recreational areas and community service facilities. The P zone is compatible with the variety of existing development patterns, existing zoning, and future land use designations found on the surrounding properties.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located between Westland Road and I-25, adjacent to Crow Creek
Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Subject Property (Looking West)
Source: Development Office



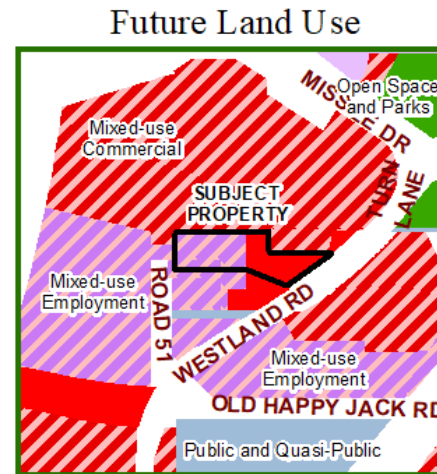
Photograph #2 – Subject Property (Looking NE)
Source: Development Office

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria of Section 2.2.1.d:

1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

The proposed zone change is in accordance with the plans and policies outlined in PlanCheyenne.

The future land use designation for the proposed annexation is a combination of Community Business and Mixed-use Employment Campus. The Community Business designation states, “supporting uses, open space and recreation, and other public or civic uses are appropriate,” while Mixed-use employment states the district is, “primarily office and light industry in a campus setting, which should include open space, parks and plazas, and pedestrian walkways.” Rezoning to P Public District in anticipation of future Greenway will fulfill open space as a secondary use in the subject area through the future land use plan.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

In addition to complying with the future land use designation for the area in Plan Cheyenne, the proposed zone change achieves several policies outlined in PlanCheyenne. The zone change aligns with the following Plan Foundation and goals:

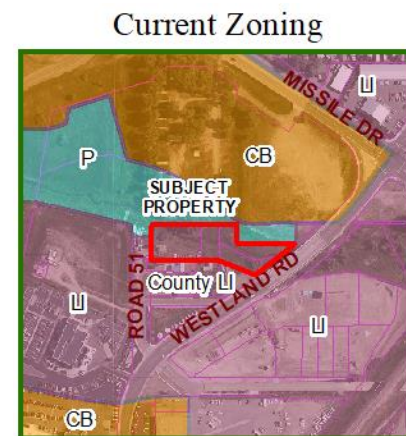
- **Foundation 6 – Creating a Legacy of Parks, Open Spaces and Trails:** *It is also the aim of this Plan to conserve significant open space lands – to weave the natural environment through our built environment and around it. Open space adds beauty, creates a unique image and sense of place for the Cheyenne Area, provides relief from our built environment, and helps maintain water and environmental quality for the health of our community.*
 - The annexation and zone change work together to bring this foundation to fruition. The annexation and zone change are an integral step to a future Greenway connection and restoration efforts on Crow Creek, which will improve the environmental quality of the area.
- **Policy 1.5.C. Quality of Life Amenities:** *Strive to provide and maintain public facilities and other quality of life amenities (e.g., parks, trails, libraries, recreational centers) that are competitive with those of other communities of the Northern Front Range region.*
 - This zone change achieves this policy by designating land for open space for future Greenway Development
- **Policy 4.6.A. Support Active Transportation:** *Support physically active transportation (e.g., bicycling, walking, etc.) by building and maintaining infrastructure such as bike lanes, sidewalks, trails, lighting, and facilities for easy and safe use...*

- The zone change addresses this policy by designating land for trail development through the P Public District for future Greenway.
- **Policy 5.3.D. Restrict Future Development in Hazardous Areas:** *Limit or restrict development in potential natural hazard areas, including but not limited to floodplains and steep unstable slope areas, to the maximum extent possible...*
 - The application achieves this policy by limiting the development possible in the floodplain. The zone change will change the designation from LI to P, reducing development possibilities and anticipating future Greenway.
- **Policy 6.2.A. Connected Greenway System:** *Identify and reduce gaps in the current Greenway system, recognizing it is an important recreation and transportation trail resource.*
 - The zone change is in anticipation for future Greenway development that will ultimately connect to Happy Jack Road west of Cheyenne.

2. SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The proposed zone change is compatible with nearby property.

The subject property is currently zoned LI Light Industrial, which is consistent with the properties to the South. However, it conflicts with the P Public District zone found with the properties to the North. Staff is recommending rezoning to the P zone to be consistent with the property to the North to accommodate future Greenway. Furthermore, P Public District in the area will allow the employment uses in the LI and CB zones the opportunity to have trail connections to the Crow Creek Greenway. This Greenway segment will ultimately connect the Enhanced Use Lease Area of the FE Warren Air Force Base to Martin Luther King Park and the downtown area, further reinforcing the need for the zone change. Although the P zone is not consistent with the LI and CB zones in the area, it is compatible and complementary to these zones by creating a means for future connections.



Map #4 – Zoning Districts
Source: Cheyenne/Laramie County GIS Cooperative Program

3. ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

The P Public District zone is more suitable for the subject property than the LI Light Industrial zone.

This property is currently zoned LI Light Industrial in the County. Although the property to the South is zoned LI, this zone is not suitable for the subject property. Not only is the subject property owned by the City of Cheyenne, but also most of the property is within the FEMA Floodway or the FEMA

100-year Floodplain making future light industrial development on the property unlikely. Developing to the LI standards in the floodway would create the potential for property loss and flood damage.

The proposed zone for this property is the P Public District. This zone is intended primarily for public sites, buildings and uses where activities conducted provide service to the public, including educational facilities, recreational areas and community service facilities. The subject property is City-owned and has been identified for future Greenway development. Furthermore, the Crow Creek Revival project anticipates completing stream restoration through the property. The P designation is compatible and suitable with the planned use of the property.

4. SUBDIVISION STANDARDS - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The proposed zone change is not adversely affecting the applicability of subdivision standards.

The zone change is not proposing any changes to streets or blocks. The subject property is likely to remain vacant until future Greenway is developed on the property.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The proposed zone change meets the intent, applicability, and design objectives of the P Public District zone.

The P Public District zone is intended primarily for public sites, buildings and uses where activities conducted provide service to the public, including educational facilities, recreational areas and community service facilities. The planned future Greenway will serve as a recreational area and community service facility.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

Future development of the property will meet all applicable zoning standards.

The development of future Greenway will meet the City of Cheyenne Greenway design standards. There is not anticipated development of any buildings or other structures on the subject property at this time and future development is unlikely due to the FEMA floodway. Staff anticipates a P-OS lot type for the subject property.

7. REVIEW – *The review and recommendations of other reviewing bodies.*

No reviewing agencies provided comments on the proposed zone change. No other comments were received.

8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety or general welfare.*

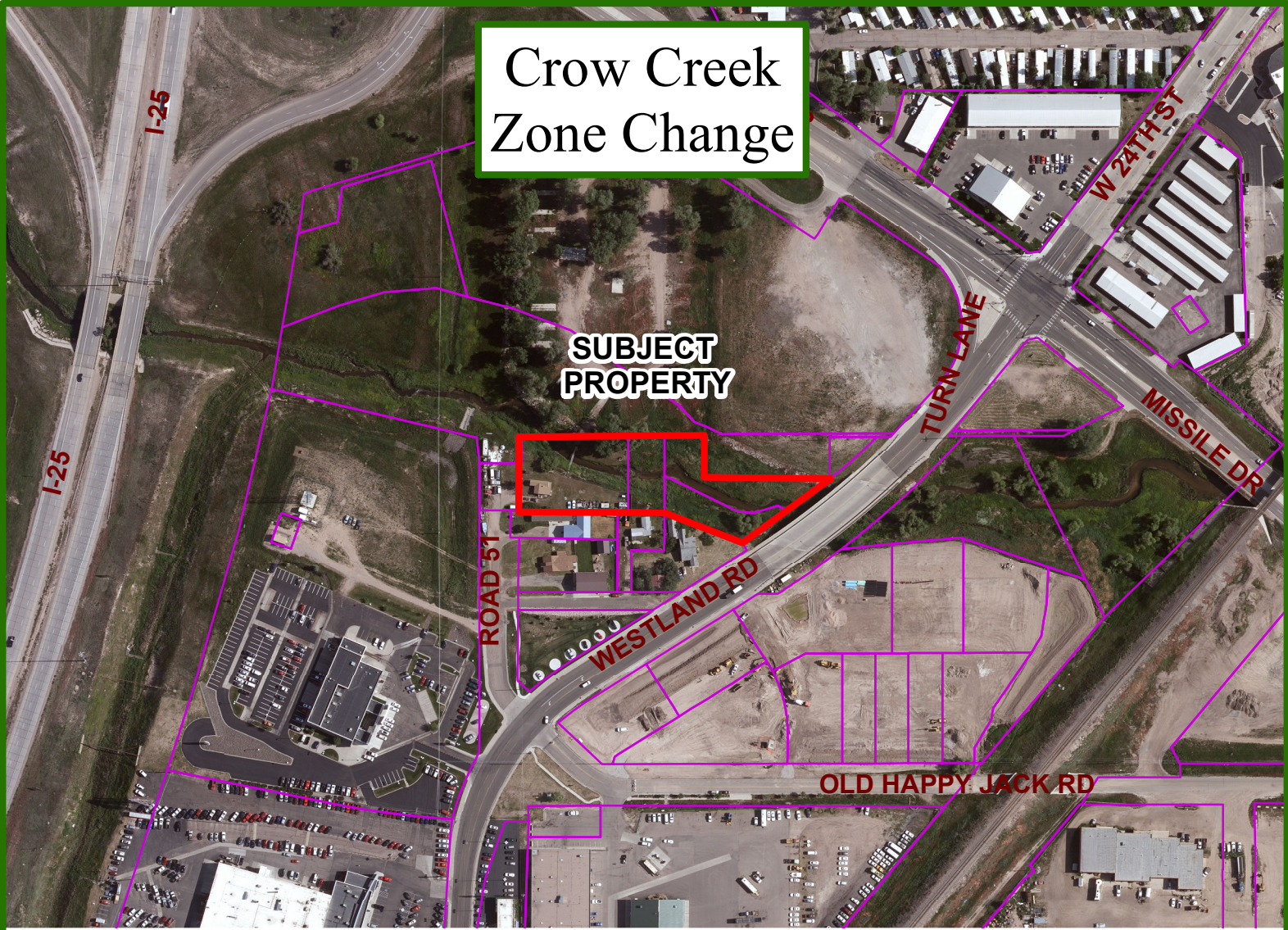
City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

Attachments: Aerial Map
 Zone Change Map

cc: Owner
 Agent/Applicant
 File

Crow Creek Zone Change

**SUBJECT
PROPERTY**

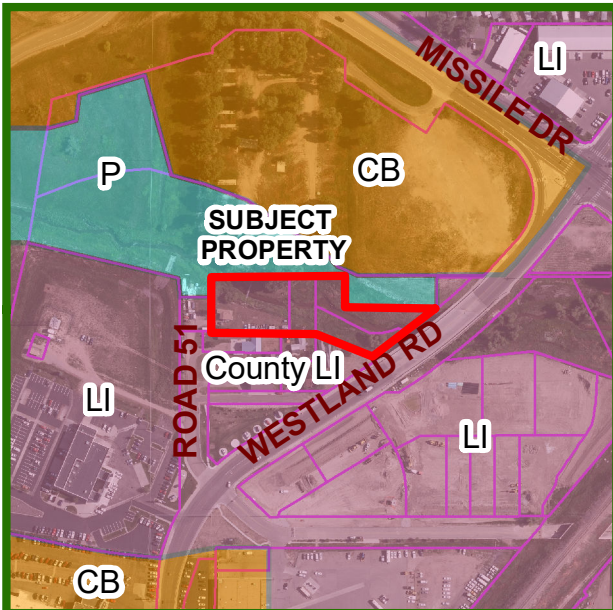


Application Number
Zone Change
UDC-20-00038

Applicant:
City of Cheyenne

0 300 600
Feet
Scale applies to above map only

Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

